

KESAVANANDA BHARATI v STATE OF KERALA (1973)
SUPREME COURT OF INDIA - CASE OVERVIEW & INTRODUCTION

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CASE NO.:
Writ Petition (civil)

SUPREME COURT OF INDIA

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135 of 1970

PETITIONER:

Kesavananda Bharati Sripadagalvaru and Ors

RESPONDENT:

State of Kerala and Anr

DATE OF JUDGMENT: 24/04/1973

BENCH:

S.M. Sikri & A.N. Grover & A.N. Ray & D.G. Palekar & H.R. Khanna & J.M. Shelat & K.K. Mathew

& K.S. Hegde & M.H. Beg & P. Jaganmohan Reddy & S.N. Dwivedi & Y.V.Chandrachud

JUDGMENT:

JUDGMENT

W.P.(C)

135

OF

1970

Appellants: His Holiness Kesavananda Bharati Sripadagalvaru and Ors.

Vs.

Respondent: State of Kerala and Anr.

Decided On: 24.04.1973

Hon'ble Judges:

S.M. Sikri, C.J., A.N. Grover, A.N. Ray, D.G. Palekar, H.R. Khanna, J.M. Shelat, K.K.

Mathew, K.S. Hegde M.H. Beg, P. Jaganmohan Reddy, S.N. Dwivedi and Y.V.

Chandrachud, JJ.

JUDGMENT

S.M. Sikri, C.J.

1. I propose to divide my judgment into eight parts. Part I will deal with Introduction;

Part II with interpretation of Golakhnath case; Part III with the interpretation of the

original Article 368, as it existed prior to its amendment; Part IV with the validity of the

Constitution (Twenty-fourth Amendment) Act; Part V with the validity of Section 2 of

the Constitution (Twenty-fifth Amendment) Act; Part VI with the validity of Section 3 of

the Constitution (Twenty-fifth Amendment) Act; Part VII with Constitution (Twenty-ninth Amendment) Act; and Part VIII with conclusions.

PART I-Introduction

2. All the six writ petitions involve common questions as to the validity of the Twenty-fourth, Twenty-fifth and Twenty-ninth Amendments of the Constitution. I may give a few

facts in Writ petition No. 135 of 1970 to show how the question arises in this petition.

Writ Petition No. 135 of 1970 was filed by the petitioner on March 21, 1970 under

Article 32 of the Constitution for enforcement of his fundamental rights under Articles

25, 26, 14, 19(1)(f) and 31 of the Constitution. He prayed that the provisions of the

Kerala Land Reforms Act, 1963 (Act 1 of 1964) as amended by the Kerala Land Reforms (Amendment) Act 1969 (Act 35 of 1969) be declared unconstitutional, ultra vires and void. He further prayed for an appropriate writ or order to issue during the pendency of the petition. This Court issued rule nisi on March 25, 1970.

3. During the pendency of the writ petition, the Kerala Land Reforms (Amendment) Act 1971 (Kerala Act No. 25 of 1971) was passed which received the assent of the President on August 7, 1971. The petitioner filed an application for permission to urge additional grounds and to impugn the Constitutional validity of the Kerala Land Reforms (Amendment) Act 1971 (Kerala Act No. 25 of 1971).

4. In the meantime, the Supreme Court by its judgment dated April 26, 1971 in *Kunjukutty Sahib v. State of Kerala* [1972] S.C.C. 364 (Civil Appeals Nos. 143, 203-242, 274 & 309 of 1971). Judgment dated April 26, 1971 upheld the majority judgment of the Kerala High Court in *V.N. Narayanan Nair v. State of Kerala* A.I.R. 1971 Kerala 98

whereby certain, sections of the Act were struck down.

5. The Constitution (Twenty-fifth Amendment) Act came into force on November 5, 1971, the Constitution (Twenty-fifth Amendment) Act came into force on April 20, 1972

and the Constitution (Twenty-ninth Amendment) Act came into force on June 9, 1972.

The effect of the Twenty-ninth Amendment of the Constitution was that it inserted the

following Acts in the Ninth Schedule to the Constitution:

65. The Kerala Land Reforms (Amendment) Act, 1969 (Kerala Act 35 of 1969).

66. The Kerala Land Reforms (Amendment) Act, 1971 (Kerala Act 25 of 1971).

6. The petitioner then moved an application for urging additional grounds and for amendment of the writ petition in order to challenge the above Constitutional amendments.

7. The Court allowed the application for urging additional grounds and for amendment of

the writ petition on August 10, 1972 and issued notices to the Advocates-General to

appear before this Court and take such part in the proceedings as they may be advised.

8. When the case was placed before the Constitutional bench, it referred this case to a

larger bench to determine the validity of the impugned Constitutional amendments.

9. Similar orders were passed in the other writ petitions.

10. The larger bench was accordingly constituted. It was then felt that it would be

necessary to decide whether I.C. Golak Nath v. State of Punjab [1967] 2 S.C.R. 762 was

rightly decided or not. However, as I see it, the question whether Golak Nath's [1967] 2

S.C.R. 762 case was rightly decided or not does not matter because the real issue is

different and of much greater importance, the issue being : what is the extent of the

amending power conferred by Article 368 of the Constitution, apart from Article 13(2),

on Parliament ?

11. The respondents claim that Parliament can abrogate fundamental rights such as

freedom of speech and expression, freedom to form associations or unions, and freedom

of religion. They claim that democracy can even be replaced and one-party rule established. Indeed, short of repeal of the Constitution, any form of Government with no

freedom to the citizens can be set up by Parliament by exercising its powers under Article

368.

12. On the side of the petitioners it is urged that the power of Parliament is much more

limited. The petitioners say that the Constitution gave the Indian citizen freedoms which

were to subsist for ever and the Constitution was drafted to free the nation from any

future tyranny of the representatives of the people. It is this freedom from

tyranny which, according to the petitioners, has been taken away by the impugned Article 31C which has been inserted by the Twenty-fifth Amendment. If Article 31C is valid, they say, hereafter Parliament and State Legislatures and not the Constitution, will determine how much freedom is good for the citizens.

13. These cases raise grave issues. But however grave the issues may be, the answer must depend on the interpretation of the words in Article 368, read in accordance with the principles of interpretation which are applied to the interpretation of a Constitution given by the people to themselves.

14. I must interpret Article 368 in the setting of our Constitution, in the background of our history and in the light of our aspirations and hopes, and other relevant circumstances. No other Constitution in the world is like ours. No other Constitution combines under its wings such diverse peoples, numbering now more than 550 millions, with different languages and religions and in different stages of economic development, into one nation, and no other nation is faced with such vast socio-economic problems.

15. I need hardly observe that I am not interpreting an ordinary statute, but a Constitution which apart from setting up a machinery for government, has a noble and grand vision.

The vision was put in words in the Preamble and carried out in part by conferring fundamental rights on the people. The vision was directed to be further carried out by the application of directive principles.

PART II-Interpretation of Golak Nath's Case.

16. Before proceeding with the main task, it is necessary to ask : what was decided in I.C.

Golak Nath v. State of Punjab [1967] 2 S.C.R. 762 ? In order to properly appreciate that case, it is necessary first to have a look at Sri Sankari Prasad Singh Deo v. Union of India and State of Bihar [1952] S.C.R. 89 and Sajjan Singh v. State of Rajasthan [1965] 1 S.C.R. 933.

17. The Constitution (First Amendment) Act, 1951, which inserted inter alia Articles 31A

and 31B in the Constitution was the subject matter of decision in Sankari Prasad's [1952] S.C.R. 89 case. The main arguments relevant to the present case which were advanced in support of the petition before this Court were summarised by Patanjali Sastri, J. as he then was, as follows:
First, the power of amending the Constitution provided for under Article 368 was conferred not on Parliament but on the two Houses of Parliament as designated body and, therefore, the provisional Parliament was not competent to exercise that power under Article 379.
Fourthly, in any case Article 368 is a complete code in itself and does not provide for any amendment being made in the bill after it has been introduced in the House. The bill in the present case having been admittedly amended in several particulars during its passage through the House, the Amendment Act cannot be said to have been passed in conformity with the procedure prescribed in Article 368.
Fifthly, the Amendment Act, in so far as it purports to take away or abridge the rights conferred by Part III of the Constitution, falls within the prohibition of Article 13(2).

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18. As stated in the head note, this Court held:

The provisional Parliament is competent to exercise the power of amending the Constitution under Article 368. The fact that the said article refers to the two Houses of the Parliament and the President separately and not to the Parliament, does not lead to the inference that the body which is invested with the power to amend is not the Parliament but a different body consisting of the two Houses.

The words "all the powers conferred by the provisions of this Constitution on Parliament" in Article 379 are not confined to such powers as could be exercised by the provisional Parliament consisting of a single chamber, but are wide enough to include the power to amend the Constitution conferred by Article 368.

19. I may mention that Mr. Seervai contends that the conclusion just mentioned was

wrong and that the body that amends the Constitution under Article 368 is not Parliament.

20. The Court further held:

The view that Article 368 is a complete code in itself in respect of the procedure provided by it and does not contemplate any amendment of a Bill for amendment of the Constitution after it has been introduced, and that if the Bill is amended during its passage through the House, the Amendment Act cannot be said to have been passed in conformity with the procedure prescribed by Article 368 and would be invalid, is erroneous.

Although "law" must ordinarily include Constitutional law there is a clear demarcation between ordinary law which is made in the exercise of legislative power and Constitutional law, which is made in the exercise of constituent power. In the context of Article 13, "law" must be taken to mean rules or regulations made in exercise of ordinary legislative power and not amendments to the Constitution made in the exercise of constituent power with the result that Article 13(2) does not affect amendments made under Article 368.

21. Although the decision in Sankari Prasad's [1952] S.C.R. 89 case was not challenged

in Sajjan Singh's [1965] 1 S.C.R. 933 case, Gajendragadkar, C.J. thought it fit to give reasons for expressing full concurrence with that decision.

22. The only contention before the Court was that "since it appears that the powers prescribed by Article 226 are likely to be affected by the intended amendment of the provisions contained in Part III, the bill introduced for the purpose of making such an amendment, must attract the proviso, and as the impugned Act has admittedly not gone through the procedure prescribed by the proviso, it is invalid". According to Gajendragadkar, C.J. "that raised the question about the construction of the provisions contained in Article 368 and the relation between the substantive part of Article 368 with its proviso.

23. The Chief Justice came to the conclusion that "as a matter of construction, there is no escape from the conclusion that Article 368 provides for the amendment of the provisions contained in Part III without imposing on Parliament an obligation to adopt the procedure prescribed by the proviso.

24. The learned Chief Justice thought that the power to amend in the context was a very

wide power and it could not be controlled' by the literal dictionary meaning of the word

"amend". He expressed his agreement with the reasoning of Patanjali Sastri, J. regarding the applicability of Article 13(2) to Constitution Amendment Acts passed under Article

368. He further held that when Article 368 confers on Parliament the right to amend the

Constitution, it can be exercised over all the provisions of the Constitution. He thought

that "if the Constitution-makers had intended that any future amendment of the provisions in regard to fundamental rights should be subject to Article 13(2), they would

have taken the precaution of making a clear provision in that behalf.

25. He seemed to be in agreement with the following observations of Kania, C.J. in A.K.

Gopalan v. The State of Madras [1950] S.C.R. 88 at p. 100:

the inclusion of Article 13(1) and (2) in the Constitution appears to be a matter of abundant caution. Even in their absence if any of the fundamental rights was infringed by any legislative enactment, the Court has always the power to declare the enactment, to the extent it transgresses the limits, invalid.

26. He was of the view that even though the relevant provisions of Part III can be justly

described as the very foundation and the cornerstone of the democratic way of life

ushered in this country by the Constitution, it cannot be said that the fundamental rights

guaranteed to the citizens are eternal and inviolate in the sense that they can never be

abridged or amended.

27. According to him, it was legitimate to assume that the Constitution-makers visualised

that Parliament would be competent to make amendments in these rights so as to meet the

challenge of the problems which may arise in the course of socio-economic progress and

development of the country.

28. Hidayatullah, J., as he then was, agreed with the Chief Justice that the 17th

Amendment was valid even though the procedure laid down in the proviso to Article 368

had not been followed. But he expressed his difficulty in accepting the part of the

reasoning in Sankari Prasad's [1952] S.C.R. 89 case.

29. He observed as follows:

It is true that there is no complete definition of the word "law" in the article but it is significant that the definition does not seek to exclude Constitutional amendments which it would have been easy to indicate in the definition by adding "but shall not include an amendment of the Constitution".

30. He further observed:

The meaning of Article 13 thus depends on the sense in which the word "law" in Article 13(2) is to be understood. If an amendment can be said to fall within the term "law", the Fundamental Rights become "eternal and inviolate" to borrow the language of the Japanese Constitution. Article 13 is then on par with Article 5 of the American Federal Constitution in its immutable prohibition as long as it stands.

31. According to him "Our Preamble is more akin in nature to the American Declaration of Independence (July 4, 1776) than to the preamble to the Constitution of the United States. It does not make any grant of power but it gives a direction and purpose to the Constitution which is reflected in Parts III and IV. Is it to be imagined that a two-thirds majority of the two Houses at any time is all that is necessary to alter it without even consulting the States ? It is not even included in the proviso to Article 368 and it is difficult to think that as it has not the protection of the proviso it must be within the main part of Article 368.

32. He further observed:

I would require stronger reason than those given in Sankari Prasad's case to make me accept the view that Fundamental Rights were not really fundamental but were intended to be within the powers of amendment in common with the other parts of the Constitution and without the concurrence of the States.

33. He held:

What Article 368 does is to lay down the manner of amendment and the necessary conditions for the effectiveness of the amendment....

The Constitution gives so many assurances in Part III that it would be difficult to think that they were the play-things of a special majority. To hold this would mean prima facie that the most solemn parts of our Constitution stand on the same footing as any other provision and even on a less firm ground than one on which the articles mentioned in the proviso stand.

34. Mudholkar, J. although agreeing that the writ petition should be dismissed, raised

various doubts and he said that he was reserving his opinion on the question whether

Sankari Prasad's case was rightly decided. He thought:

The language of Article 368 is plain enough to show that the action of Parliament in amending the Constitution is a legislative act like one in exercise of its normal legislative power. The only difference in respect of an amendment of the Constitution is that the Bill amending the Constitution has to be passed by a special majority (here I have in mind only those amendments which do not attract the proviso to Article 368). The result of a legislative action of a legislature cannot be other than 'law' and, therefore, it seems to me that the fact that the legislation deals with the amendment of a provision of the Constitution would not make its result any the less a 'law'.

35. He observed:

It is true that the Constitution does not directly prohibit the amendment of Part III. But it would indeed be strange that rights which are considered to be fundamental and which include one which is guaranteed by the Constitution (vide Article 32) should be more easily capable of being abridged or restricted than any of the matters referred to in the proviso to Article 368 some of which are perhaps less vital than fundamental rights. It is possible, as suggested by my learned brother, that Article 368 merely lays down the procedure to be followed for amending the Constitution and does not confer a power to amend the Constitution which, I think, has to be ascertained from the provision sought to be amended or other relevant provisions or the preamble.

36. Later, he observed:

Above all, it formulated a solemn and dignified preamble which appears to be an epitome of the basic features of the Constitution. Can it not be said that these are indications of the intention of the Constituent Assembly to give a permanency to the basic features of the Constitution ?

37. He posed a further question by observing:

It is also a matter for consideration whether making a change in a basic feature of the Constitution can be regarded merely as an amendment or would it be, in effect, rewriting a part of the Constitution; and if the latter, would it be within the purview of Article 368 ?

38. He then stressed the prime importance of the preamble:

The Constitution indicates three modes of amendments and assuming that the provisions of Article 368 confer power on Parliament to amend the Constitution, it will still have to be considered whether as long as the preamble stands unamended, that power can be exercised with respect to any of the basic features of the Constitution.

To illustrate my point, as long as the words 'sovereign democratic republic' are there, could the Constitution be amended so as to depart from the democratic form of Government or its republic character? If that cannot be done, then, as long as the words "Justice, social, economic and political etc.," are there could any of the rights enumerated in Articles 14 to 19, 21, 25, 31 and 32 be taken away ? If they cannot, it will be for consideration whether they can be modified.

It has been said, no doubt, that the preamble is not a part of our Constitution. But, I think, that if upon a comparison of the preamble with the broad features of the Constitution it would appear that the preamble is an epitome of those features or, to put it differently if these features are an amplification or concretisation of the concepts set out in the preamble it may have to be considered whether the preamble is not a part of the Constitution. While considering this question it would be of relevance to bear in mind that the preamble is not of the common run such as is to be

found in an Act of a legislature. It has the stamp of deep deliberation and is marked by precision. Would this not suggest that the framers of the Constitution attached special significance to it?

39. Coming now to Golak Nath's case, the petitioner had challenged the validity of the

Constitution (Seventeenth Amendment) Act, 1964 which included in the Ninth Schedule,

among other acts, the Punjab Security of Land Tenures Act, 1953 (Act 10 of 1953), and

the Mysore Land Reforms Act (Act 10 of 1962) as amended by Act 14 of 1965.

40. It was urged before the Court that Sankari Prasad's [1952] S.C.R. 89 case in which

the validity of the Constitution (First Amendment) Act, 1951 and Sajjan Singh's [1965] 1

S.C.R. 933 case in which the validity of the Constitution (Seventeenth Amendment) Act

was in question had been wrongly decided by this Court.

41. Subba Rao, C.J. speaking for himself and 4 other judges summarised the conclusions

at page 815 as follows:

The aforesaid discussion leads to the following results:

(1) The power of the Parliament to amend the Constitution is derived from Articles 245, 246 and 248 of the

Constitution and not from Article 368 thereof which only deals with procedure. Amendment is a legislative process.

(2) Amendment is 'law' within the meaning of Article 13 of the Constitution and, therefore, if it takes away or abridges the rights conferred by Part III thereof, it is void.

(3) The Constitution (First Amendment) Act, 1951, Constitution (Fourth Amendment) Act, 1955, and the Constitution (Seventeenth Amendment) Act, 1964, abridge the scope of the fundamental rights. But, on the basis of earlier decisions of this Court, they were valid.

(4) On the application of the doctrine of 'prospective overruling', as explained by us earlier, our decision will have only prospective operation and, therefore, the said amendments will continue to be valid.

(5) We declare that the Parliament will have no power from the date of this decision to amend any of the provisions of Part III of the Constitution so as to take away or abridge the fundamental rights enshrined therein.

(6) As the Constitution (Seventeenth Amendment) Act holds the field, the validity of the two impugned Acts, namely, the Punjab Security of Land Tenures Act X of 1953, and the Mysore Land Reforms Act X of 1962, as amended by Act XIV of 1965, cannot be questioned on the ground that they offend Articles 13, 14 or 31 of the Constitution.

42. It must be borne in mind that these conclusions were given in the light of the

Constitution as it stood then i.e. while Article 13(2) subsisted in the Constitution. It was

then not necessary to decide the ambit of Article 368 with respect to the powers of

Parliament to amend Article 13(2) or to amend Article 368 itself. It is these points that

have now to be decided.

43. It may further be observed that the Chief Justice refused to express an opinion on the

contention that, in exercise of the power of amendment, Parliament cannot destroy the

fundamental structure of the Constitution but can only modify the provision thereof

within the framework of the original instrument for its better effectuation.

44. As will be seen later, the first conclusion above, does not survive for discussion any

longer because it is rightly admitted on behalf of the petitioners that the Constitution

(Twenty Fourth Amendment) Act, 1971, in so far as it transfers power to amend the

Constitution from the residuary entry (Entry 97 List 1) or Article 248 of the Constitution

to Article 368, is valid; in other words Article 368 of the Constitution as now amended by the Twenty Fourth Amendment deals not only with the procedure for amendment but also confers express power on Parliament to amend the Constitution.

45. I will also not discuss the merits of the second conclusion as the same result follows

in this case even if it be assumed in favour of the respondents that an amendment of the

Constitution is not law within Article 13(2) of the Constitution.

46. Hidayatullah, J. as he then was, came to the following conclusions at page 902:

(i) that the Fundamental Rights are outside the amendatory process if the amendment seeks to abridge or take away any of the rights;

(ii) that Sankari Prasad's case (and Sajjan Singh's case which followed it) conceded the power of amendment over Part III of the Constitution on an erroneous view of Articles 13(2) and 368.

(iii) that the First, Fourth and Seventh Amendments being part of the Constitution by acquiescence for a long time, cannot now be challenged and they contain authority for the seventeenth Amendment;

(iv) that this Court having now laid down that Fundamental Rights cannot be abridged or taken away by the exercise of amendatory process in Article 368, any further inroad into these rights as they exist today will be illegal and unconstitutional unless it complies with Part III in general and

Article 13(2) in particular;

(v) that for abridging or taking away Fundamental Rights, a Constituent body will have to be convoked; and

(vi) that the two impugned Acts, namely, the Punjab Security of Land Tenures Act, 1,953 (X of 1953) and the Mysore Land Reforms Act, 1961 (X of 1962) as amended by Act XIV of 1965 are valid under the Constitution not because they are included in Schedule 9 of the Constitution but because they are protected by Article 31-A, and the President's assent.

47. I am not giving his reasons for these conclusions here because they will be examined

when dealing with the arguments addressed to us on various points.

48. Wanchoo, J. as he then was, also speaking on behalf of 2 other Judges held that

Sankari Prasad's [1952] S.C.R. 89 case was correctly decided and the majority in Sajjan

Singh's [1965] 1 S.C.R. 933 case was correct in following that decision.

49. Bachawat, J. held:

(1) Article 368 not only prescribes the procedure but also gives the power of amendment;

(2) Article 368 gives the power of amending each and every provision of the Constitution and as Article 13(2) is a part of the Constitution it is within the reach of the amending power;

(3) Article 368 is not controlled by Article 13(2) and the prohibitory injunction in Article 13(2) is not attracted against the amending power;

(4) Constitutional amendment under Article 368 is not a law within the meaning of Article 13(2);

(5) The scale of value embodied in Parts III and IV is not immortal. Parts III and IV being parts of the Constitution are not immune from amendment under Article 368. Constitution-makers could not have intended that the rights conferred by Part III could not be altered by giving effect to the policies of Part IV.

(6) The Preamble cannot control the unambiguous language of the articles of the Constitution.

50. Regarding the amendment of the basic features of the Constitution, he observed:

Counsel said that they could not give an exhaustive catalogue of the basic features, but sovereignty, the republican form of government, the federal structure and the fundamental rights were some of the features. The Seventeenth Amendment has not derogated from the sovereignty, the republican form of government and the federal structure, and the question whether they can be touched by amendment does not arise for decision. For the purposes of these cases, it is sufficient to say that the fundamental rights are within the reach of the amending power.

51. Ramaswami, J., held:

(1) The amending power under Article 368 is sui generis;

(2) "Law" in Article 13(2) cannot be construed so as to include "Law" made by Parliament under Articles 4, 169, 392, 5th Schedule Part D and 6th Schedule Para 21.

(3) The expression "fundamental rights" does not lift the fundamental rights above the Constitution itself;

(4) Both the power to amend and the procedure to amend are enacted in Article 368.

(5) There were no implied limitations on the amending power and all articles of the Constitution were amendable either under the proviso of Article 368 or under the main part of the article.

(6) The Federal structure is not an essential part of our Constitution.

(7) The power of amendment is in point of quality an adjunct of

sovereignty. If so, it does not admit of any limitations.

52. In brief 6 Judges held that in view of Article 13(2) Fundamental Rights could not be

abridged or taken away. Five Judges held that Article 13(2) was inapplicable to Acts

amending the Constitution.

PART III-Interpretation of Article 368

53. Let me now proceed to interpret Article 368. Article 368, as originally enacted, read

as follows:

An amendment of this Constitution may be initiated only by the introduction of a Bill for the purpose in either House of Parliament, and when the Bill is passed in each House by a majority of the total membership of that House and by a majority of not less than two-thirds of

the members of that House present and voting, it shall be presented to the President for his assent and upon such assent being given to the Bill, the Constitution shall stand amended in accordance with the terms of the Bill: Provided that if such amendment seeks to make any change in(a) Article 54, Article 55, Article 73, Article 162 or Article 241, or

(b) Chapter IV of Part V, Chapter V of Part VI, or Chapter I of Part XI, or

(c) any of the Lists in the Seventh Schedule, or

(d) the representation of States in Parliament, or

(e) the provisions of this article,

the amendment shall also require to be ratified by the Legislatures of not less than one-half of the States specified in Parts A and B of the First Schedule by resolutions to that effect passed by those Legislatures before the Bill making provision for such amendment is presented to the President for assent.

54. It will be noticed that Article 368 is contained in a separate part and the heading is

"Amendment of the Constitution", but the marginal note reads "Procedure for amendment

of the Constitution".

55. The expression "amendment of the Constitution" is not defined or expanded in any

manner, although in other parts of the Constitution, the word "Amend" or "Amendment"

has, as will be pointed out later, been expanded. In some parts they have clearly a narrow

meaning.. The proviso throws some light on the problem. First, it uses the expression "if

such amendment seeks to make any change in"; it does not add the words "change of ", or

omit "in", and say "seeks to change" instead of the expression "seeks to make any change in".

56. The articles which are included in the proviso may be now considered. Part V,

Chapter I, deals with "the Executive". Article 52, provides that there shall be a President

of India, and Article 53 vests the executive power of the Union in the President and

provides how it shall be exercised. These two articles are not mentioned in the proviso to

Article 368 but Articles 54 and 55 are mentioned.

57. Article 54 provides:

54. The President shall be elected by the members of an electoral college consisting of(a) the elected members of both Houses of Parliament; and

(b) the elected members of the Legislative Assemblies of the States.

58. Article 55 prescribes the manner of election of the President.

59. Why were Articles 52 and 53 not mentioned in the proviso to Article 368 if the

intention was that the States would have a say as to the federal structure of the country?

One of the inferences that can be drawn is that the Constitution-makers never contemplated, or imagined that Article 52 will be altered and there shall not be a

President of India. In other words they did not contemplate a monarchy being set up in

India or there being no President.

60. Another article which has been included in the proviso to Article 368 is Article 73

which deals with the extent of executive powers of the Union. As far as the VicePresident is concerned, the States have been given no say whether there shall be a VicePresident or not; about the method of his election, etc. But what is remarkable is that

when we come to Part VI of the Constitution, which deals with the "States", the only

provision which is mentioned in the proviso to Article 368 is Article 162 which deals

with the extent of executive power of States. The appointment of a Governor, conditions

of service of a Governor, and the Constitution and functions of the Council of Ministers,

and other provisions regarding the Ministers and the conduct of government business are

not mentioned at all in the proviso to Article 368. Another article which is mentioned in

Clause (a) of the proviso to Article 368 is Article 241 which originally dealt with High

Courts for States in Part C of the First Schedule.

61. Chapter IV of Part V of the Constitution which deals with the Union

Judiciary, and

Chapter V of Part VI which deals with the High Courts in the State are included in the

proviso to Article 368 but it is extra-ordinary that Chapter VI of Part VI which deals with

subordinate Judiciary is not mentioned in Clause (b). Chapter I of Part XI is included and

this deals with the Legislative Relations between the Union and the States, but Chapter II

of Part XI which deals with Administrative Relations between the Union and the States,

and various other matters in which the States would be interested are not included.

Provisions relating to services under the State and Trade and Commerce are also not

included in the proviso.

62. This analysis of the provisions contained in Clauses (a) and (b) of the proviso to Article 368 shows that the reason for including certain articles and excluding certain other from the proviso was not that all articles dealing with the federal structure or the status of the States had been selected for inclusion in the proviso.

63. Clause (c) of the proviso mentions the Lists in the Seventh Schedule, Clause (d)

mentions the representation of States in Parliament, and Clause (e) the provisions of

Article 368 itself. The provisions of Sub-clauses (c), (d) and (e) can rightly be said to

involve the federal structure and the rights of the States.

64. What again is remarkable is that the fundamental rights are not included in the

proviso at all. Were not the States interested in the fundamental rights of their people ?

The omission may perhaps be understandable because of the express provision of Article

13(2) which provided that States shall not make any law which takes away or abridges

the rights conferred by Part III and any law made in contravention of this clause shall to

the extent of the contravention be void, assuming for the present that Article 13(2)

operates on Constitutional amendments.

65. In construing the expression "amendment of this Constitution I must look at the

whole scheme of the Constitution. It is not right to construe words in vacuum and then

insert the meaning into an article. Lord Greene observed in *Bidie v. General Accident,*

Fire and Life Assurance Corporation [1948] 2 All E.R. 995, 998:

The first thing one has to do, I venture to think, in construing words in a section of an Act of Parliament is not to take those words in vacuo, so to speak, and attribute to them what is sometimes called their natural or ordinary meaning. Few words in the English language have a natural or ordinary meaning in the sense that they must be so read that their meaning is entirely independent of their context. The method of construing statutes that I prefer is not to take particular words and attribute to them a sort of *prima facie* meaning which you may have to displace or modify. It is to read the statute as a whole and ask oneself the question: "In this state, in this context, relating to this subject-matter, what is the true meaning of that word ?

66. I respectfully adopt the reasoning of Lord Greene in construing the expression "the amendment of the Constitution.

67. Lord Greene is not alone in this approach. In *Bourne v. Norwich Crematorium* [1967]

2 All E.R. 576, 578 it is observed:

English words derive colour from those which surround them. Sentences are not mere collections of words to be taken out of the sentence defined separately by reference to the "dictionary or decided cases, and then put back again into the sentence with the meaning which you have assigned to them as separate words, so as to give the sentence or phrase a meaning which as a sentence or phrase it cannot bear without distortion of the English language.

68. Holmes, J. in *Towne v. Eigner* 245 U.S. 418; 425 : 62 L. ed. 372; 376 had the same

thought. He observed:

A word is not crystal, transparent and unchanged; it is the skin of living thought and may vary greatly in colour and content according to the circumstances and the time in which it is used.

69. What Holmes J. said is particularly true of the word "Amendment" or "Amend".

70. I may also refer to the observation of Gwyer C.J. and Lord Wright:

A grant of the power in general terms, standing by itself, would no doubt be construed in the wider sense; but it may be qualified by other express provisions in the same enactment, by the implications of the context, and even by the considerations arising out of what appears to be the general scheme of the Act". (Per Gwyer C.J.-*The Central Provinces and Berar Act*, 1939 F.C.R. 18 at 42.)

The question, then, is one of construction and in the ultimate resort must be determined upon the actual words used, read not in vacuo but as occurring in a single complex instrument, in which one part may throw light on another. The Constitution has been described as the federal compact, and the construction must hold a balance between all its parts". (Per Lord Wright-*James v. Commonwealth of Australia* 1936 A.C. 578 at 613).

71. In the Constitution the word "amendment" or "amend" has been used in various places to mean different things. In some articles, the word "amendment" in the context

has a wide meaning and in another context it has a narrow meaning. In Article 107, which

deals with legislative procedure, Clause (2) provides that "subject to the provisions of

Articles 108 and 109, a Bill shall not be deemed to have been passed by the House of Parliament unless it has been agreed to by both Houses, either without amendment or with such amendments only as are agreed to by both Houses." It is quite clear that the word "amendment" in this article has a narrow meaning. Similarly, in Article 111 of the Constitution, whereby the President is enabled to send a message requesting the Houses to consider the desirability of introducing amendments, the "amendments" has a narrow meaning.

72. The opening of Article 4(1) reads:

4(1) Any law referred to in Article 2 or Article 3 shall contain such provisions for the amendment of the First Schedule and the Fourth Schedule as may be necessary to give effect to the provisions of the law.... Here the word "amendment" has a narrower meaning. "Law" under Articles 3 and 4 must

"conform to the democratic pattern envisaged by the Constitution; and the power which

the Parliament may exercise...is not the power to over-ride the Constitutional scheme. No

state can, therefore, be formed, admitted or set up by law under Article 4 by the

Parliament which has no effective legislative, executive and judicial organs". (Per Shah

J.-Mangal Singh v. Union of India [1967] 2 S.C.R. 109 at 112.

(Emphasis supplied)

73. Article 169(2) reads:

Any law referred to in Clause (1) shall contain such provisions for the amendment of this Constitution as may be necessary to give effect to the provisions of the law and may also contain such supplemental, incidental and consequential provisions as Parliament may deem necessary.

Here also the word "amendment" has a narrow meaning.

74. Para 7 of Part D, Fifth Schedule, which deals with amendment of the schedule, reads:

7. Amendment of the Schedule.-(1) Parliament may from time to time by law amend by way of addition, variation or repeal any of the provisions of this Schedule and, when the Schedule is so amended, any reference to this Schedule in this Constitution shall be construed as a reference to such schedule as so amended.

Here the word "amend" has been expanded by using the expression "by way of addition,

variation or repeal", but even here, it seems to me, the amendments will have to be in line

with the whole Constitution. Similarly, under para 21 of the Sixth Schedule, which

repeats the phraseology of para 7 of the Fifth Schedule, it seems to me, the amendments

will have to be in line with the Constitution.

75. I may mention that in the case of the amendments which may be made in exercise of

the powers under Article 4, Article 169, para 7 of the Fifth Schedule, and para 21 of the

Sixth Schedule, it has been expressly stated in these provisions that they shall not be

deemed to be amendments of the Constitution for the purposes of Article 368.

76. It is also important to note that the Constituent Assembly which adopted Article 368 on September 17, 1949, had earlier on August 18, 1949, substituted the following section in place of the old Section 291 in the Government of India Act, 1935:
291. Power of the Governor-General to amend certain provisions of the Act and orders made thereunder(1) The Governor-General may at any time by order make such amendments as he considers necessary whether by way of addition, modification or repeal, in the provisions of this Act or of any order made thereunder in relation to any Provincial Legislature with respect to any of the following matters, that is to say(a) the composition of the Chamber or Chambers of the Legislature;
(b) the delimitation of territorial constituencies for the purpose of elections under this Act.

* * * * *

Here, the word "amendment" has been expanded. It may be that there really is no expansion because every amendment may involve addition, variation or repeal of part of a provision.

77. According to Mr. Seervai, the power of amendment given by Article 4, read with Articles 2 and 3, Article 169, Fifth Schedule and Sixth Schedule, is a limited power limited to certain provisions of the Constitution, while the power under Article 368 is not limited. It is true every provision is prima facie amendable under Article 368 but this does not solve the problem before us.

78. I may mention that an attempt was made to expand the word "amend" in Article 368

by proposing an amendment that "by way of variation, addition, or repeal" be added but the amendment was rejected.

79. Again, in Article 196(2), the word "amendment" has been used in a limited sense.

Article 196(2) reads:

196(2). Subject to the provisions of Articles 197 and 198, a Bill shall not be deemed to have been passed by the Houses of the Legislature of a State having a Legislative Council unless it has been agreed to by both Houses, either without amendment or with such amendments only as are agreed to by both Houses.

80. Similar meaning may be given to the word "amendment" in Article 197(2), which reads:

197(2). If after a Bill has been so passed for the second time by the Legislative Assembly and transmitted to the Legislative Council(a) the Bill is rejected by the Council; or

(b) more than one month elapses from the date on which the Bill is laid before the Council without the Bill being passed by it; or

(c) the Bill is passed by the Council with amendments to which the Legislative Assembly does not agree,

(c) the Bill is passed by the Legislative Assembly does not agree, the Bill shall be deemed to have been passed by the Houses of the Legislature of the State in the form in which it was passed by the Legislative Assembly for the second time with such amendments, if any, as have been made or suggested by the Legislative Council and agreed to by the Legislative Assembly.

81. Under Article 200 the Governor is enabled to suggest the desirability of introducing

any such amendments as he may recommend in his message. Here again "amendment" has clearly a limited meaning.

82. In Article 35(b) the words used are:

Any law in force immediately before the commencement of this Constitution...subject to the terms thereof and to any adaptations and modifications that may be made therein under Article 372, continue in force until altered or repealed or amended by Parliament.

83. Here, all the three words are used giving a comprehensive meaning. Reliance is not placed by the draftsman only on the word "amend".

84. Similar language is used in Article 372 whereby existing laws continue to be in force

until "altered or repealed or amended" by a competent Legislature or other competent authority.

85. In the original Article 243(2), in conferring power on the President to make regulations for the peace and good government of the territories in part D of the First

Schedule, it is stated that "any regulation so made may repeal or amend any law made by

Parliament." Here, the two words together give the widest power to make regulations

inconsistent with any law made by Parliament

86. In Article 252 again, the two words are joined together to give a wider power. Clause

(2) of Article 252 reads:

252(2). Any Act so passed by Parliament may be amended or repealed by

an Act of Parliament passed or adopted in like manner but shall not, as respects any State to which it applies, be amended or repealed by an Act of the Legislature of that State.

87. In the proviso to Article 254, which deals with the inconsistency between laws made

by Parliament and laws made by the Legislatures of States, it is stated: Provided that nothing in this clause shall prevent Parliament from enacting at any time any law with respect to the same matter including a law adding to, amending, varying or repealing the law so made by the Legislature of the State;

88. In Article 320(5), "all regulations made under the proviso to Clause (3)" can be

modified "whether by way of repeal or amendment" as both Houses of Parliament or the

House or both Houses of the Legislature of the States may make during the session in

which they are so laid.

89. I have referred to the variation in the language of the various articles dealing with th

e'

question of amendment or repeal in detail because our Constitution was drafted very

carefully and I must presume that every word was chosen carefully and should have its

proper meaning. I may rely for this principle on the following observations of the United

States Supreme Court in *Holmes v. Jennison* (10) L. ed. 579; 594 and quoted with approval in *William v. United States* (77) L. ed. 1372; 1380:

In expounding the Constitution of the United States, every word must have its due force, and appropriate meaning: for it is evident from the whole instrument, that no word was unnecessarily used, or needlessly added....

90. Reference was made to Section 6(2) of the Indian Independence Act, 1947, in which

the last three lines read:

...and the powers of the Legislature of each Dominion include the power to repeal or amend any such Act, order, rule or regulation in so far as it is part of the law of the Dominion.

Here, the comprehensive expression "repeal or amend" gives power to have a completely

new Act different from an existing act of Parliament.

91. So, there is no doubt from a perusal of these provisions that different words have been

used to meet different demands. In view of the great variation of the phrases used all

through the Constitution it follows that the word "amendment" must derive its colour

from Article 368 and the rest of the provisions of the Constitution. There is no doubt that

it is not intended that the whole Constitution could be repealed. This much is conceded

by the learned Counsel for the respondents.

92. Therefore, in order to appreciate the real content of the expression "amendment of

this Constitution", in Article 368 I must look at the whole structure of the Constitution.

The Constitution opens with a preamble which reads:

WE THE PEOPLE OF INDIA, having solemnly resolved to constitute

India into a SOVEREIGN DEMOCRATIC REPUBLIC and to secure to

all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity; and to promote among them all;

FRATERNITY assuring the dignity of the individual and the unity of the

Nation;

IN OUR CONSTITUENT ASSEMBLY this Twenty-sixth day of

November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO

OURSELVES THIS CONSTITUTION.

93. This Preamble, and indeed the Constitution, was drafted in the light and direction of

the Objective Resolutions adopted on January 22, 1947, which runs as follows:

(1) THIS CONSTITUENT ASSEMBLY declares its firm and solemn

resolve to proclaim India as an Independent Sovereign Republic and to

draw up for her future governance a Consti(2) wherein the territories that now comprise British India, the territories

that now form the Indian States, and such other parts of India as are

outside British India and the States, as well as such other territories as are willing to be constituted into the Independent Sovereign India, shall be a Union of them all; and

(3) wherein the said territories, whether with their present boundaries or with such others as may be determined by the Constituent Assembly and thereafter according to the law of the Constitution, shall possess and retain the status of autonomous units, together with residuary powers, and exercise all powers and functions of government and administration, save and except such powers and functions as are vested in or assigned to the

Union, or as are inherent or implied in the Union or resulting therefrom;
and

(4) wherein all power and authority of the Sovereign Independent India, its constituent parts and organs of government, are derived from the people;
and

(5) wherein shall be guaranteed and secured to all people of India justice, social, economic and political; equality of status, of opportunity, and before the law; freedom of thought, expression, belief, faith, worship, vocation, association and action, subject to law and public morality; and

(6) wherein adequate safeguards shall be provided for minorities backward and tribal areas, and depressed and other backward classes; and

(7) whereby shall be maintained the integrity of the territory of the Republic and its sovereign rights on land, sea, and air according to justice and the law of civilized nations, and

(8) this ancient land attains its rightful and honoured place in the world and makes its full and willing contribution to the promotion of world peace and the welfare of mankind.

94. While moving the resolution for acceptance of the Objectives Resolution, Pandit

Jawaharlal Nehru said:

It seeks very feebly to tell the world of what we have thought or dreamt for so long, and what we now hope to achieve in the near future. It is in that spirit that I venture to place this Resolution before the House and it is in that spirit that I trust the House will receive it and ultimately pass it. And may I, Sir, also with all respect, suggest to you and to the House that, when the time comes for the passing of this Resolution let it be not done in the formal way by the raising of hands, but much more solemnly, by all of us standing up and thus taking this pledge anew.

95. I may here trace the history of the shaping of the Preamble because this would show

that the Preamble was in conformity with the Constitution as it was finally accepted. Not

only was the Constitution framed in the light of the Preamble but the Preamble was

ultimately settled in the light of the Constitution. This appears from the following brief

survey of the history of the framing of the Preamble extracted from the Framing of India's

Constitution (A study) by B. Shiva Rao. In the earliest draft the Preamble was something

formal and read : "We, the people of India, seeking to promote the common good, do

hereby, through our chosen representatives, enact, adopt and give to ourselves this

Constitution, (Shiva Rao's Framing of India's Constitution-A study-p. 127.).

96. After the plan of June 3, 1947, which led to the decision to partition the country and

to set up two independent Dominions of India and Pakistan, on June 8, 1947, a joint subcommittee of the Union Constitution and Provincial Constitution

Committees, took note

that the objective resolution would require amendment in view of the latest announcement of the British Government The' announcement of June 3 had made it clear

that full independence, in the form of Dominion Status, would be conferred on India as

from August 15, 1947. After examining the implications of partition the sub-committee

thought that the question of making changes in the Objectives Resolution could appropriately be considered only when effect had actually been given to the June 3

Plan.(Special Sub-Committee minutes June 9, 1947. Later on July 12, 1947, the special

sub-committee again postponed consideration of the matter. Select Documents II, 20(ii),

p. 617. (Shiva Rao's-Framing of India's Constitution-A study-(p. 127 footnote). The

Union Constitution Committee provisionally accepted the Preamble as drafted by B.N.

Rao and reproduced it in its report of July 4, 1947 without any change, with the tacit

recognition at that stage that the Preamble would be finally based on the Objectives

Resolution. In a statement circulated to members of the Assembly on July 18, 1947

Pandit Jawaharlal Nehru inter alia, observed that the Preamble was covered more

or less

by the Objectives Resolution which it was intended to incorporate in the final Constitution subject to some modification on account of the political changes resulting

from partition. Three days later, moving the report of the Union Constitution Committee

for the consideration of the Assembly, he suggested that it was not necessary at that stage

to consider the draft of the Preamble since the Assembly stood by the basic principles

laid down in the Objectives Resolution and these could be incorporated in the Preamble

in the light of the changed situation(Shiva Rao's-Framing of India's Constitution-A study pp. 127-128 (also see footnote 1 p. 128). The suggestion was accepted by the Assembly

and further consideration of the Preamble was held over.

97. We need not consider the intermediate drafts, but in the meantime the declaration

(See Constituent Assembly Debates, Vol. 8, page 2) was adopted at the end of April,

1949 by the Government of the various Commonwealth countries and the resolution was

ratified by Constituent Assembly on May 17; 1949 after two days' debate.

98. In the meantime the process of merger and integration of Indian States had been

completed and Sardar Vallabhbhai Patel was able to tell the Constituent Assembly on

October 12, 1949, that the new Constitution was "not an alliance between democracies

and dynasties, but a real union of the Indian people, built on the basic concept of the

sovereignty of the people(Shiva Rao's-Framing of India's Constitution-A study- pp. 130-132).

99. The draft Preamble was considered by the Assembly on October 17, 1949. Shiva Rao

observes that "the object of putting the Preamble last, the President of the Assembly

explained, was to see that it was in conformity with the Constitution as accepted. "Once

the transfer of power had taken place the question of British Parliament's subsequent

approval which was visualised in the British Cabinet Commission's original plan of May

1946 could no longer arise. The sovereign character of the Constituent Assembly thus

became automatic with the rapid march of events without any controversy, and the words

in the Preamble "give to ourselves this Constitution" became appropriate. The Preamble

was adopted by the Assembly without any alteration. Subsequently the words and figure

"this twenty-sixth day of November 1949" were introduced in the last paragraph to

indicate the date on which the Constitution was finally adopted by the Constituent Assembly.

100. Regarding the use which can be made of the preamble in interpreting an ordinary statute, there is no doubt that it cannot be used to modify the language if the language of the enactment is plain and clear. If the language is not plain and clear, then the preamble may have effect either to extend or restrict the language used in the body of an enactment. "If the language of the enactment is capable of more than one meaning then that one is to be preferred which comes nearest to the purpose and scope of the preamble." (see *Tibbhuban Parkash Nayyar v. The Union of India*) [1970] 2 S.C.R. 732737.

101. We are, however, not concerned with the interpretation of an ordinary statute. As Sir Alladi Krishnaswami, a most eminent lawyer said, "so far as the Preamble is concerned, though in an ordinary statute we do not attach any importance to the Preamble, all importance has' to be attached to the Preamble in a Constitutional statute". (Constituent Assembly Debates Vol. 10, p. 417). Our Preamble outlines the objectives of the whole

Constitution. It expresses "what we had thought or dreamt for so long.

102. In *re. Berubari Union and Exchange of Enclaves* [1960] 3 S.C.R. 250, 281-82 this

was said about the Preamble:

There is no doubt that the declaration made by the people of India in exercise of their sovereign will in the preamble to the Constitution is, in the words of Story, "a key to open the mind of the makers" which may show the general purposes for which they made the several provisions in the Constitution; but nevertheless the preamble is not a part of the Constitution, and, as Willoughby has observed about the" preamble to the American Constitution, "it has never been regarded as the source of any substantive power conferred on the Government of the United States or any of its departments. Such powers embrace only those expressly granted in the body of the Constitution and such as may be implied from those so granted".

What is true about the power is equally true about the prohibitions and limitations.

103. Wanchoo, J. in *Golaknath v. Punjab* [1967] 2 S.C.R. 762; 838 and 914 relied on

Berubari's case and said:

on a parity of reasoning we are of opinion that the preamble cannot prohibit or control in any way or impose any implied prohibitions or limitations on the power to amend the Constitution contained in Article 368.

104. Bachawat, J. in this case observed:

Moreover the preamble cannot control the unambiguous language of the articles of the Constitution, see Wynes, *Legislative Executive and Judicial powers in Australia*, third edition pp. 694-5; in *Re. Berubari Union & Exchange of Enclaves*. [1960] 3 S.C.R. 250, 281-82.

105. With respect, the Court was wrong in holding, as has been shown above, that the

Preamble is not a part of the Constitution unless the court was thinking of the distinction

between the Constitution Statute and the Constitution, mentioned by Mr. Palkhivala. It

was expressly voted to be a part of the Constitution. Further, with respect, no authority

has been referred before us to establish the proposition that "what is true about the

powers is equally true about the prohibitions and limitations." As I will show later, even

from the preamble limitations have been derived in some cases.

106. It is urged in the written submission of Mr. Palkhivala that there is a distinction

between the Indian Constitution Statute and the Constitution of India. He urges as

follows:

This Constitution is the Constitution which follows the Preamble. It starts with Article 1 and ended originally with the Eighth Schedule and now ends with the Ninth Schedule after the First Amendment Act, 1951. The way the Preamble is drafted leaves no doubt that what follows, or is annexed to, the Preamble, is the Constitution of India.

107. He has also urged that the Preamble came into force on November 26, 1949 alongwith Articles 5, 6, 7 etc. as provided in Article 394 because Articles 5, 6, 7 and the

other Articles mentioned therein could hardly come into force without the enacting clause

mentioned in the Preamble having come into force. He says that the Preamble is a part of

the Constitution statute and not a part of the Constitution but precedes it.

There is

something to be said for his contention but, in my view, it is not necessary to base my

decision on this distinction as it is not necessary to decide in the present case whether

Article 368 enables Parliament to amend the Preamble. Parliament has not as yet chosen

to amend the Preamble.

108. The Preamble was used by this Court as an aid to construction in Behram Khurshed

Pasikaka v. The State of Bombay [1955] 1 S.C.R. 613 at p. 653. After referring to Part

III, Mahajan, C.J., observed:

We think that the rights described as fundamental rights are a necessary consequence of the declaration in the preamble that the people of India have solemnly resolved to constitute India into a sovereign democratic republic and to secure to all its citizens justice, social, economic and political; liberty of thought, expression, belief, faith and worship; equality of status and of opportunity. These fundamental rights have not been put in the Constitution merely for individual benefits, though ultimately they come into operation in considering individual rights. They have been put there as a matter of public policy and the doctrine of waiver can have no application to provisions of law which have been enacted as a matter of Constitutional policy.

109. Similarly in In re. The Kerala Education Bill [1959] S.C.R. 995, 1018-1019 1957,

Das C.J. while considering the validity of the Kerala Education Bill 1957 observed:

In order to appreciate the true meaning, import and implications of the provisions of the Bill which are said to have given rise to doubts, it will be necessary to refer first to certain provisions of the Constitution which may have a bearing upon the questions under consideration and then to the actual provision of the Bill. The inspiring and nobly expressed preamble to our Constitution records the solemn resolve of the people of India to constitute.... (He then sets out the Preamble). Nothing provokes and stimulates thought and expression in people more than education. It is education that clarifies our belief and faith and helps to strengthen our spirit of worship. To implement and fortify these supreme purposes set forth in the preamble, Part III of our Constitution has provided for us certain fundamental rights.

110. In Sajjan Singh v. State of Rajasthan [1965] 1 S.C.R. 933; 968 Mudholkar, J. after

assuming that the Preamble is not a part of the Constitution, observed:

While considering this question it would be of relevance to bear in mind that the preamble is not of the common run such as is to be found in an Act of a legislature. It has the stamp of deep deliberation and is marked by precision. Would this not suggest that the framers of the Constitution attached special significance to it?

111. Quick and Garran in their "Annotated Constitution of the Australian Commonwealth

(1901 p. 283) "adopted the following sentence from Lord Thring's "Practical Legislation, p. 36":

A preamble may be used for other reasons to limit the scope of certain expressions or to explain facts or introduce definitions.

112. Thornton on "Legislative Drafting"-p. 137-opines that "construction of the preamble

may have effect either to extend or to restrict general language used in the body of an enactment.

113. In Attorney-General v. Prince Ernest Augustus of Hanover [1957] A.C. 436, 460 the

House of Lords considered the effect of the preamble on the interpretation of Princes

Sophia Naturalization Act; 1705. It was held that "as a matter of construction

of the Act,
there was nothing in the Act or its preamble, interpreted in the light of the
earlier relevant
statutes...capable of controlling and limiting the plain and ordinary meaning of
the
material words of the enacting provisions and that the class of lineal
descendants "born or
hereafter to be born" meant the class of such descendants in all degrees without
any limit
as to time." The House of Lords further held that "looking at the Act from the
point of
view of 1705 there was no such manifest absurdity in this construction as would
entitle
the court to reject it.

114. Mr. Seervai referred to the passage from the speech of Lord Normand, at p.
467. The

passage is lengthy but I may quote these sentences:

It is only when it conveys a clear and definite meaning in comparison with
relatively obscure or indefinite enacting words that the preamble may
legitimately prevail. If they admit of only one construction, that
construction will receive effect even if it is inconsistent with the preamble,
but if the enacting words are capable of either of the constructions offered
by the parties, the construction which fits the preamble may be preferred.

115. Viscount Simonds put the matter at page 463, thus:

On the one hand, the proposition can be accepted that "it is a settled rule

that the preamble cannot be made use of to control the enactments themselves where they are expressed in clear and unambiguous terms". I quote the words of Chitty L.J., which were cordially approved by Lord Davey in *Powell v. Kempton Park Racecourse Co. Ltd.* (1889) A.C. 143, 185. On the other hand it must often be difficult to say that any terms are clear and unambiguous until they have been studied in their context 116. This case shows that if on reading Article 368 in the context of the Constitution I

find the word "Amendment" ambiguous I can refer to the Preamble to find which construction would fit in with the Preamble.

117. In *State of Victoria v. The Commonwealth* 45 A.L.J. 251 which is discussed in

detail later, a number of Judges refer to the federal structure of the Constitution. It is i

n

the preamble of the Commonwealth of Australia Constitution Act, 1902 that 'one indissoluble Federal Commonwealth' is mentioned.

118. There is a sharp conflict of opinion in Australia respecting the question whether an

amendment can be made which would be inconsistent with the Preamble of the Constitution Act referring to the "indissoluble" character and the sections which refer to

the "Federal" nature of the Constitution. After referring to this conflict, Wynes(Wynes

Legislative, Executive and Judicial Powers in Australia, Fourth Edn. p. 506). observes:

Apart from the rule which excludes the preamble generally from consideration in statutory interpretation, it is clear that, when all is said and done, the preamble at the most is, only a recital of the intention which the Act' seeks to effect; and it is a recital of a present (i.e., as in 1900) intention. But in any event the insertion of an express reference to amendment in the Constitution itself must surely operate as a qualification upon the mere recital of the reasons for its creation.

119. I am not called upon to say which view is correct but it does show that in Australia, there is a sharp conflict of opinion as to whether the Preamble can control the amending power.

120. Story in his *Commentaries on the Constitution of the United States* states : [(1883)

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It (Preamble) is properly resorted to, where doubts or ambiguities arise upon the words of the enacting part; for if they are dear and unambiguous, there seems little room for interpretation, except in cases leading to an obvious absurdity, or to a direct overthrow of the intention express in the preamble.

There does not seem any reason why, in a fundamental law or Constitution of government, an equal attention should not be given to the intention of the framers, as stated in the preamble. And accordingly we find, that it has been constantly referred to by statesmen and jurists to aid them in the exposition of its provisions.

121. Story further states at page 447-448:

And the uniform doctrine of the highest judicial authority has accordingly been, that it was the act of the people, and not of the states; and that it bound the latter, as subordinate to the people. "Let us turn," said Mr. Chief Justice Jay, "to the Constitution. The people therein declare, that their design in establishing it comprehended six objects: (1) To form a more perfect union; (2) to establish justice; (3) to insure domestic tranquillity;

(4) to provide for the common defence; (5) to promote the general welfare; (6) to secure the blessings of liberty to themselves and their posterity. It would," he added, "be pleasing and useful to consider and trace the relations, which each of these objects bears to the others; and to show, that, collectively, they comprise every thing requisite, with the blessing of Divine Providence, to render a people prosperous and happy." In *Hunter v. Martin* (1 Wheat. R. 305, 324), the Supreme Court say, (as we have seen) "the Constitution of the United States was ordained and established, not by the states in their sovereign capacities, but emphatically, as the preamble of the Constitution declares, by the people of the "United States;" and language still more expressive will be found used on other solemn occasions.

122. "The Supreme Court of United States (borrowing some of the language of the Preamble to the Federal Constitution) has appropriately stated that the people of the United States erected their Constitutions or forms of government to establish justice, to promote the general welfare, to secure the blessings of liberty, and to protect their persons and property from violence". (American Jurisprudence, 2d. Vol. 16 p. 184).

123. In the United States the Declaration of Independence is sometimes referred to in determining Constitutional questions. It is stated in American Jurisprudence (2d. 16. p. 189):

While statements of principles contained in the Declaration of Independence do not have the force of organic law and therefore cannot be made the basis of judicial decision as to the limits of rights and duties, yet: it has been said that it is always safe to read the letter of the Constitution in the spirit of the Declaration of Independence, and the courts sometimes refer to the Declaration in determining Constitutional questions.

124. It seems to me that the Preamble of our Constitution is of extreme importance and the Constitution should be read and interpreted in the light of the grand and noble vision expressed in the Preamble.

125. Now I may briefly describe the scheme of the Constitution. Part I of the Constitution deals with "the Union and its Territory". As originally enacted, Article 1 read as follows:

1. India, that is Bharat, shall be a Union of States.
2. The States and the territories thereof shall be the States and their territories specified in Parts A, B and C of the First Schedule.
3. The territory of India shall comprise (a) the territories of the States; (b) the territories specified in Part D of the First Schedule; and (c) such other territories as may be acquired.

126. Article 2 enabled Parliament to admit into the Union, or establish, new States on such terras and conditions as it thinks fit. Article 3 and 4 dealt with the formation of new

States and alteration of areas, boundaries or names of existing States.

127. Part II dealt with "Citizenship". The heading of Part III is "Fundamental Rights". It

first describes the expression "the State" to include "the Government and Parliament of

India and the Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India."

(Article 12), Article 13 provides that laws inconsistent with or in derogation of the fundamental rights shall be void. This applies to existing laws as well as laws made after

the coming into force of the Constitution. For the time being I assume that in Article

13(2) the word "law" includes Constitutional amendment.

128. The fundamental rights conferred by the Constitution include right to equality before

the law, (Article 14), prohibition of discrimination on grounds of religion, race, caste, se

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or place of birth, (Article 15), equality of opportunity in matters of public employment,

(Article 16), right to freedom of speech and expression, to assemble peaceably and

without arms, to form association or unions, to move freely throughout the territory of

India, to reside and settle in any part of the territory of India, to acquire, hold and dispose of property; and to practice any profession or to carry on any occupation, trade or business. (Article 19). Reasonable restrictions can be imposed on the rights under Article 19 in respect of various matters.

129. Article 20 protects a person from being convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence or to be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence. It further provides that no person shall be prosecuted and punished for the same offence more than once, and no person accused of any offence shall be compelled to be a witness against himself.

130. Article 21 provides that no person shall be deprived of his life or personal liberty except according to procedure established by law.

131. Article 22 gives further protection against arrest and detention in certain cases.

Article 22(1) provides that "no person who is arrested shall be detained in custody without being informed, as soon as may be, of the grounds for such arrest nor shall he be denied the right to consult, and to be defended by, a legal practitioner of his choice."

Article 22(2) provides that "every person who is arrested and detained in custody shall be produced before the nearest magistrate within a period of twenty-four hours of such arrest excluding the time necessary for the journey from the place of arrest to the court of the magistrate and no such person shall be detained in custody beyond the said period without the authority of a magistrate".

132. Article 22(4) deals with Preventive Detention. Article 23 prohibits traffic in human beings and other similar forms of forced labour. Article 24 provides that "no child below

the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment.

133. Articles 25, 26, 27 and 28 deal with the freedom of religion. Article 25(1) provides that "subject to public order, morality and health and to the other provisions of this Part, all persons are equally entitled to freedom of conscience and the right freely to profess, practise and propagate religion." Article 26 enables every religious denomination or section thereof, subject to public order, morality and health, to establish and manage institutions for religious and, charitable purposes; to manage their own affairs in matters of religion, to own and acquire movable and immovable property, and to administer such property in accordance with law. Article 27 enables persons to resist payment of any taxes the proceeds of which are specifically appropriated in payment of expenses for the promotion or maintenance of any particular religion or religious denomination. Article 28 deals with freedom as to attendance at religious instruction or religious worship in certain educational institutions.

134. Article 29(1) gives protection to minorities and provides that "any section of the citizens residing in the territory of India or any part thereof having a distinct language, script or culture of its own shall have the right to conserve the same." Article 29(2) provides that "no person shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, language or any of them.

135. Article 30 gives further rights to minorities whether based on religion or language to establish and administer educational institutions of their choice. Article 30(2) prohibits the State from discriminating against any educational institution, in granting aid to educational institutions, on the ground that it is under the management of a minority, whether based on religion or language.

136. As will be shown later the inclusion of special rights for minorities has great significance. They were clearly intended to be inalienable.

137. The right to property comes last and is dealt with the Article 31. As originally enacted, it dealt with the right to property and prevented deprivation of property save by authority of law, and then provided for compulsory acquisition for public purposes on payment of compensation. It had three significant provisions, which show the intention of the Constitution-makers regarding property rights. The first is Article 31(4).

This provision was intended to protect legislation dealing with agrarian reforms. The second provision, Article 31(5)(a), was designed to protect existing legislation dealing with compulsory acquisition. Some acts, saved by this provision did not provide for payment of full compensation e.g. U.P. Town Improvement Act, 1919. The third provision Article 31(6) provided a protective umbrella to similar laws enacted not more than eighteen months before the commencement of the Constitution.

138. The fundamental rights were considered of such importance that right was given to an aggrieved person to move the highest court of the land, i.e., the Supreme Court, by appropriate proceedings for the enforcement of the rights conferred by this part, and this right was guaranteed. Article 32(2) confers very wide powers on the Supreme Court, to issue directions or orders or writs including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this Part. Article 32(4) further provides that "the right guaranteed by this article shall not be suspended except as otherwise provided for by this Constitution.

139. Article 33 enables Parliament by law to "determine to what extent any of the rights conferred by this Part shall, in their application to the members of the Armed Forces or the Forces charged with the maintenance of public order, be restricted or abrogated so as to ensure the proper discharge of their duties and the maintenance of discipline among them.

140. This articles shows the care with which, the circumstances in which, fundamental rights can be restricted or abrogated were contemplated and precisely described.

141. Article 34 enables Parliament, by law, to indemnify any person in the service of the Union, or of a State or any other person in connection with acts done while martial law was in force in a particular area.

142. Part IV of the Constitution contains directive principles of State policy. Article 37 specifically provides that "the provisions contained in this Part shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws." This clearly shows, and it has also been laid down by this Court, that these

provisions are not justiciable and cannot be enforced by any Court. The Courts could not, for instance, issue a mandamus directing the State to provide adequate means of livelihood to every citizen, or that the ownership and control of the material resources of the community be so distributed as best to subserve the common good, or that there should be equal pay for equal work for both men and women.

143. Some of the directive principles are of great fundamental importance in the governance of the country. But the question is not whether they are important; the question is whether they override the fundamental rights. In other words, can Parliament abrogate the fundamental rights in order to give effect to some of the directive principles?

144. I may now briefly notice the directive principles mentioned in Part IV. Article 38 provides that "the State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political, shall inform all the institutions of the national life." Now, this directive is compatible with the fundamental rights because surely the object of many of the fundamental rights is to ensure that there shall be justice, social, economic and political, in the country. Article 39, which gives particular directions to the State, reads thus:

39. The State shall, in particular, direct its policy towards securing(a) that the citizens, men and women equally, have the right to an adequate means of livelihood;
(b) that the ownership and control of the material resources of the community are so distributed as best to subserve the common good;
(c) that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment;
(d) that there is equal pay for equal work for both men and women;
(e) that the health and strength of workers, men and women, and the tender age of children are not abused and that citizens are not forced by economic necessity to enter avocations unsuited to their age or strength;
(f) that childhood and youth are protected against exploitation and against moral and material abandonment.

145. Article 40 deals with the organisation of village panchayats. Articles 41 deals with the right to work, to education and to public assistance in certain cases. Article 42 direct

s that the State shall make provisions for securing just and humane conditions of work and for maternity relief. Article 43 direct that "the State shall endeavour to secure, by suitable legislation or economic organisation or in any other way, to all workers, agricultural,

industrial or otherwise, work, a living wage, conditions of work ensuring a decent standard of life and full enjoyment of leisure and social and cultural opportunities and, in particular, the State shall endeavour to promote cottage industries on an individual or cooperative basis in rural areas.

146. Article 44 enjoins that the "State shall endeavour to secure for the citizens a uniform civil code throughout the territory of India." Desirable as it is, the Government has not been able to take any effective steps towards the realisation of this goal. Obviously no Court can compel the Government to lay down a uniform civil code even though it is essentially desirable in the interest of the integrity, and unity of the country.

147. Article 45 directs that "the State shall endeavour to provide, within a period of ten years from the commencement of this Constitution, for free compulsory education for all children until they complete the age of fourteen years." This again is a very desirable directive. Although the Government has not been able to fulfil it completely, it cannot be compelled by any court of law to provide such education.

148. Article 46 supplements the directive given above and enjoins the State to promote with special care the educational and economic interests of the weaker sections of the people, and in particular, of the Scheduled Castes and the Scheduled Tribes, and to protect them from social injustice and all forms of exploitation.

149. Article 47 lays down as one of the duties of the State to raise the standard of living and to improve public health, and to bring about prohibition. Article 48 directs the State to endeavour to organise agriculture and animal husbandry on modern and scientific

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